

JOHNSON v CITY OF ANGELS, et al

24CV47321

**PLAINTIFF'S MOTION TO REOPEN CASE; PLAINTIFF'S MOTION FOR
PERMISSION TO FILE SECOND AMENDED COMPLAINT; PLAINTIFF'S MOTION
FOR RESTRAINING ORDER**

On or about April 16, 2024, Plaintiff filed a Complaint alleging "Intentional Tort: building of fence in curtilage making curtilage inaccessible and car garages inaccessible" and "Intentional Tort: Libel, slander telling public that there are dangerous people, perverts, drug dealers, addicts, sex offenders, criminals, persons dangerous to minors, living at plaintiffs house, as well as other accusations." (Plaintiff's Complaint). Individual defendants are Scott McNurlin ("McNurlin"), Diane Bateman ("Bateman"), Christy Miro ("Miro"), Jenny Eltringham ("Eltringham"), Timothy Randall ("Randall", and Alvin Broglio ("Broglio") (collectively "Individual Defendants.>").

Before the Court is Plaintiff's Motion to Reopen Case, Plaintiff's Motion for Permission to File Second Amended Complaint, and Plaintiff's Motion for Restraining Order.

None of the Motions comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the

court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language In the notice may be a basis for the Court to deny the motion.

Plaintiff has been repeatedly admonished about his continued failure to include the requisite language and has repeatedly failed to comply with the Local Rule. Additionally, the Court concurs with defendants' opposition that the Motions of necessity must be substantively denied as the Court's jurisdiction to hear the motions terminated once the Order of Dismissal was entered on 3/10/25. Accordingly, the Motions are **DENIED, WITH** prejudice.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required but if Defendants want to submit a Formal Order the Court will sign same.

MATTER OF SILVEIRA

21PR8357

FRANCILLE PETERS' MOTION TO QUASH CONSUMER REQUESTS AND ACCOMPANYING SUBPOENA

This matter includes four consolidated probate petitions and one related civil complaint. The Objectors, Francille Elaine Peters, Individually, as Beneficiary, as Executor, and as Co-Trustee; and David J. Silveira, Jr., Individually and as Personal Representative, now bring a motion to quash consumer requests and associated subpoenas.

I. Background

Carolyn Silveira ("Carolyn")¹ and David J. Silveira Sr. ("David, Sr.") were a married couple with five children: Audrey Petricevich ("Audrey"), Manuel Silveira ("Manuel"), Francille Elaine Peters ("Francille"), David Silveira Jr. ("David Jr. ") and "Dominick Silveira ("Dominick")². (Declaration of Audrey Petricevich ("Audrey Decl.") ¶ 3.)

In or around 2016, Carolyn created the Carolyn L. Silveira Separate Property Revocable Trust dated August 2, 2016, ("Carolyn Trust") naming daughter Francille as the trustee. (Audrey Decl. ¶ 10.) Francille was also given Power of Attorney. (Ibid.) Audrey avers that in 2019, she and David Sr. confronted Carolyn about the fact that she was improperly transferring community property to herself via the Carolyn Trust. (Ibid.)

In February of 2020, Carolyn filed for divorce from David Sr. According to Audrey, the divorce was bitter and split the siblings' loyalty. Francille and David Jr. aligned with Carolyn, while Manuel and Audrey fell more in step with David Sr. (Id. ¶ 12.)

In August 2020, Carolyn, through her attorney, conveyed an offer to buy out David Sr.'s interest in the community real property for \$500,000, and pay off a home equity line of credit with a \$52,000 balance. (Id. ¶ 14.) At that time it was represented that Carolyn had the financial means to do so, without a loan, and it appeared that the \$500,000 would come from David Jr. and Francille. (Ibid.)

¹ Due to the common surnames, first names will be used for all parties. No disrespect is intended.

² Dominick is not a party to the matter or the instant motion/opposition.